

GZ: 2024-0.796.258 dated December 12, 2024 (Case Number: DSB-D550.1113)

[Note from the editor: Names and companies, legal forms and product designations, addresses (including URLs, IP and email addresses), file numbers (and the like), statistical data, etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected.]

Criminal Finding

Accused: Michael D***, born on **.**.196*

You have, as the responsible party in the sense of Art. 4 No. 7 of Regulation (EU) 2016/679 on the protection of natural persons in the processing of personal data, on the free movement of such data and repealing Directive 95/46/EC (General Data Protection Regulation, hereinafter referred to as "GDPR"), OJ No. L 119 of May 4, 2016, p. 1, as amended, committed the following administrative offense regarding the facts stated below:

On July 15, 2024, in Vienna (hereinafter referred to as "Crime Scene"), you forwarded nude photos of Angelika V*** (hereinafter referred to as "Affected"), which you had previously taken with the mobile phone of the Affected, without the consent of the Affected from her mobile phone to your own mobile phone via the service "I***". Furthermore, you stored the photographs on your mobile phone from July 15, 2024, to July 16, 2024 (hereinafter referred to as "Time of Offense"). The photographs reflect intimate images as nude photos and are personal data concerning the sexual life of the Affected. The processing of image data carried out – forwarding and storage of the photographs – was unlawful, as it could not be based on the consent of the Affected nor on any of the other exceptional circumstances of Art. 9 para. 2 GDPR and contradicts the principles according to Art. 5 para. 1 lit. a GDPR (lawfulness, processing in good faith, transparency), Art. 5 para. 1 lit. b ("purpose limitation") and Art. 5 para. 1 lit. c GDPR ("data minimization").

Administrative offense according to:

Art. 9 as well as Art. 5 para. 1 lit. a in conjunction with Art. 83 para. 1 and para. 5 lit. a GDPR OJ L 2016/119, p. 1, as amended

Due to this administrative offense, the following penalty is imposed:

Fine of Euro

if this is uncollectible,

substitute imprisonment of

According to

€ 2,000

120 hours

Art. 83 para. 5 lit. a GDPR in conjunction with § 16

Administrative Penal Act 1991 – VStG

Furthermore, you are required to pay according to § 64 of the Administrative Penal Act 1991 – VStG: 200

Euro as a contribution to the costs of the criminal proceedings, which is 10% of the fine, but at least 10 Euro;

Euro as compensation for cash expenses for

The total amount to be paid (fine/costs/cash expenses) therefore amounts to

Euro

Payment deadline:

If no appeal is filed, this criminal finding is immediately enforceable. In this case, the total amount must be paid within two weeks after the legal force takes effect to the account [Note from the editor: here

abbreviated],

held by

the Data Protection Authority,

to be paid.

As a purpose of use, please indicate the case number and the date of completion.

If payment is not made within this period, the total amount can be collected. In this case, a flat-rate cost contribution of five Euro must be paid. If payment is still not made, the outstanding amount will be enforced, and in the case of its uncollectibility, the corresponding substitute imprisonment for this amount will be executed.

Reasoning:

1.

The following decision-relevant facts are established based on the conducted evidence procedure:

1.1. Regarding the procedural course and lack of cooperation from the accused

On August 28, 2024, the Data Protection Authority (hereinafter referred to as "DSB") was informed via a report from Ms. Angelika V*** (hereinafter referred to as "Affected") that the accused secretly took several nude photos of the Affected on July 15, 2024, while creating a nude photo of the Affected and transmitted these to himself via the service "I***".

The DSB subsequently initiated an administrative penal procedure with a resolution dated October 1, 2024 (GZ: D550.1113; 2024-0.631.094) and requested the accused to justify himself regarding the following administrative offense (formatting not retained 1:1):

"You have, on July 15, 2024, in Vienna (the 'Crime Scene'), in accordance with the agreement, taken a nude photo of Angelika V*** (hereinafter referred to as 'Affected') with her mobile phone, considering the sole utilization by the Affected.

However, without the consent of the Affected, you took several nude photos beyond the agreed-upon image and transmitted these to your mobile phone via the service 'I***', thereby unlawfully collecting personal data of the Affected."

and transmitted. Furthermore, you have stored the photographs on your mobile phone from July 15, 2024, to August 28, 2024 ("period of the offense") and thus continuously processed personal data of the affected individuals. The photographs reflect intimate images as act photos and constitute personal data concerning the sexual life of the affected individuals. The processing of image data carried out – creation, forwarding, and storage of the photographs – was unlawful, as it cannot be based on either the consent of the affected person or any of the other permissible conditions under Article 9(1) GDPR and contradicts the principles according to Article 5 GDPR."

In this letter, it was explicitly pointed out that the criminal proceedings will be conducted without hearing the accused if the request for justification is not complied with.

The request for justification was accompanied by an attachment regarding the disclosure of income and asset circumstances as well as custody obligations. The attachment contains the following notice (formatting not reproduced 1:1):

"With the attached request for justification, an administrative penalty procedure has been initiated against you as the accused. According to § 19 Abs. 2 last sentence, Administrative Penal Act 1991 – VStG, the income and asset circumstances as well as any custody obligations of the accused must be taken into account when determining fines.

We therefore request you to fill out the following questionnaire and return it to us. If you do not submit the questionnaire or do not do so in a timely manner (by the date specified in the attached request for justification), we will be forced to assess the determination of any potential fine in the context of the administrative penalty procedure, taking these circumstances into account.

Occupation:

Monthly net income:

Assets:

Custody obligations: "

The letter was sent along with the attachment via registered mail to the main residence of the accused at the address "F***platz *5/*4, 1*** Vienna." After an attempted delivery by postal authorities, the letter was held for pickup starting October 11, 2024, at the "Pickup Branch: Post Office 1*** Vienna, Deposit Date: October 11, 2024."

The shipment was returned on October 29, 2024, as "not collected."

1.2. Regarding the creation and storage of the relevant photographs:

The accused invited the affected individuals on July 15, 2024, to "cool off" with him in a swimming pool on the roof of a mutual acquaintance's apartment in Vienna (hereinafter referred to as the "crime scene"). Since the affected individual did not have swimwear, she undressed and went swimming in an unclothed state.

The accused is a cameraman, and the affected individual and the accused agreed that a nude photograph of the affected individual would be taken with the affected individual's mobile phone for her sole use.

The accused took several photographs of the affected individual in an unclothed state and transmitted them without the affected individual's knowledge to his own mobile phone via the service "I***."

On July 16, 2024, the affected individual requested the accused via the following message to delete the photographs (formatting not reproduced 1:1):

"Delete immediately, my sister is a police officer. I want the pictures deleted immediately. I did not give you permission. If they are forwarded to third parties, I will file a complaint. [...]"

The accused replied to the affected individual on the same day as follows (formatting not reproduced 1:1):

"I actually wanted to photoshop [sic] them and send you the improved photos, but as you wish, I know the right to my own image and would never disregard it; I am a cameraman and deal with it every day."

The accused deleted the nude photographs of the affected individual from his mobile phone on July 16, 2024.

2.

The findings are made based on the following assessment of evidence:

2.1. The findings in 1.1. undoubtedly arise from the initial submission dated August 28, 2024, and the relevant administrative penalty file. The finding regarding the delivery process of the decision dated October 1, 2024 (GZ: D550.1113; 2024-0.631.094) is based on the unproblematic and clearly legible return receipt.

2.2. The findings essentially arise from the information provided by the complainant, particularly based on the submitted screenshots of the message exchange between the affected individual and the accused. The affected individual asked the accused on July 16, 2024, whether he had sent her the photographs, to which he replied: "exactly, I won't show them." The chat history also reveals the accused's appeal and that he deleted the photographs following the request. The accused did not comment on the allegations despite the request for justification dated October 1, 2024 (GZ: D550.1113; 2024-0.631.094).

3.

Legally, it follows:

3.1. Regarding the Competence of the DSB and the Scope of Application of the GDPR

Art. 83 para. 5 lit. a GDPR stipulates that in the case of violations of the provisions of Art. 5, 6, 7, and 9 GDPR, fines of up to 20,000,000 Euros or, in the case of a company, up to 4% of its total worldwide annual revenue from the previous financial year may be imposed, depending on which amount is higher. According to § 22 para. 5 DSG, the competence for imposing fines against natural and legal persons for Austria as the national supervisory authority lies with the DSB.

According to Art. 2 para. 1 GDPR, the regulation applies to the wholly or partially automated processing of personal data as well as to the non-automated processing of personal data that are stored or are intended to be stored in a filing system. The image data captured in the present case by the mobile phone undoubtedly constitutes personal data within the meaning of Art. 4 no. 1 GDPR (cf. CJEU 11.12.2014, C-212/13, para. 2). Furthermore, it should be noted that the photographs indeed reflect intimate recordings. The meanings of "intimate" include, among others: "very close and familiar (in relation to the personal relationship between people); sexual; concerning the area of the genitals;

cozy, comfortable, having a private character" (cf. the link <https://www.duden.de/rechtschreibung/intim>). Thus, the affected person is in a state of undress, and the photographs were taken during a shared "cooling off." Sexual life encompasses all information related to sexual activities, preferences, and practices, which includes, for example, intimate images (cf. Kastelitz/Hötzendorfer/Tschohl in Knyrim, DatKomm Art. 9 GDPR, para. 29). Therefore, the photograph in question certainly captures data about the sexual life of the affected person within the meaning of Art. 9 para. 1 GDPR (cf. also the decision of the DSB from 20.06.2024, GZ: D124.0614/23; 2024-0.342.465).

Through the "creation," "transmission," and "storage" of the photographs using a mobile phone, processing activities within the meaning of Art. 4 no. 2 GDPR were carried out. In light of the established facts, the accused is to be classified as the controller according to Art. 4 no. 7 GDPR. As the controller, the accused is the addressee of the relevant obligations of the GDPR – such as compliance with the principles of data processing – in connection with the processing activities in question, which will be examined in more detail below.

3.2. Regarding the Legality of Data Processing

With regard to the legality of the processing, it is initially pointed out that Art. 5 GDPR establishes the principles of processing personal data and states in para. 1 lit. a that personal data must be processed lawfully, fairly, and in a transparent manner in relation to the data subject ("Lawfulness, Fairness, Transparency"). The provision of Art. 5 para. 1 lit. b GDPR further stipulates that personal data must be collected for specified, explicit, and legitimate purposes and must not be processed in a manner incompatible with those purposes (principle of "Purpose Limitation"). The provision under Art. 5 para. 1 lit. c GDPR also stipulates that the specific data processing must be adequate, relevant, and limited to what is necessary for the purposes of processing (principle of "Data Minimization").

In principle, there is a processing prohibition under Art. 9 para. 1 GDPR for special categories of personal data. The requirements for lawful data processing in connection with data concerning sexual life are specified in Art. 9 para. 2 GDPR as an exception to this processing prohibition.

Art. 9 para. 2 GDPR contains a list of ten conditions ("use cases") in which the processing prohibition of Art. 9 para. 1 GDPR does not apply. A recourse to Art. 6 para. 1 GDPR is excluded, as it would circumvent the high thresholds of Art. 9 para. 2 (cf. in Knyrim, DatKomm Art. 9 GDPR para. 30).

In comparison to Art. 6 para. 1, Art. 9 para. 2 particularly lacks the permissibility conditions of "processing in the legitimate interest of the controller or a third party" (Art. 6 para. 1 lit. f) and that of "processing for the performance of a contract" (Art. 6 para. 1 lit. b; see however Art. 9 para. 2 lit. h "based on a contract with a member of a health profession"), which leads to a more restrictive permissibility regime (cf. in Knyrim, DatKomm Art. 9 GDPR para. 30).

In this case, as already shown at the outset, the following processing operations must be differentiated, each of which must subsequently be examined for its legality:

- 1) Creation of the photographs
- 2) Transmission of the photographs
- 3) Storage of the photographs.

3.2.1. Regarding the Creation of the Photographs

With regard to the creation of the photographs, Art. 9 para. 2 lit. a GDPR comes into play. According to Art. 9 para. 2 lit. a GDPR, the processing prohibition of special categories of personal data does not apply if the data subject has given explicit consent to the processing of the said personal data for one or more specified purposes. Thus, with regard to the creation of the photographs, the affected person explicitly consented, desiring the creation of photographs of her person in an undressed state with her mobile phone. Therefore, no violation can be seen in connection with this processing operation.

3.2.2. Regarding the Transmission of the Photographs

For the transmission of the photographs to the mobile phone of the accused, there was no explicit consent. Rather, this occurred without the knowledge of the affected party. Although the accused did not invoke a justification due to lack of grounds, he stated in the written "I****" message exchange with the affected party that he actually wanted to "photoshop [sic]" the photographs and send the "improved photos" to the affected party, relying on the legitimate interest of a third party, specifically: the affected party. However, as already mentioned at the outset, the legitimate interest provision in Art. 9(2) GDPR

is foreign to the admissibility criteria.

Furthermore, no other exceptions under Art. 9(2) GDPR are apparent to the data protection authority. Thus, the alleged act cannot be justified by Art. 9(2) GDPR. Consequently, there is no basis justifying the processing, which also negates the existence of a legitimate purpose (Art. 5(1)(b) GDPR).

Since the processing action lacks a legitimate purpose, the processing of personal data could not be carried out in a manner that is appropriate and substantial, and limited to what is necessary for the purposes of processing (Art. 5(1)(c) GDPR). The objective condition is therefore fulfilled.

3.2.3. Regarding the Storage of the Photographs

With regard to storage, reference can be made to the statements made under point 3.2.2, and it also follows in connection with the storage that none of the exceptions present in Art. 9(2) GDPR apply.

Thus, this act cannot be justified by Art. 9(2) GDPR either.

As a result, there is also no basis justifying the processing in connection with storage, which also negates the existence of a legitimate purpose (Art. 5(1)(b) GDPR). Since the processing action lacks a legitimate purpose, the processing of personal data could not be carried out in a manner that is appropriate and substantial, and limited to what is necessary for the purposes of processing (Art. 5(1)(c) GDPR).

The objective condition for this processing action is thus also fulfilled.

3.4. Regarding the Subjective Element of the Offense

The CJEU has explicitly stated that only violations of provisions of the GDPR that the controller commits culpably, i.e., intentionally or negligently, can lead to the imposition of a fine (cf. CJEU judgment of December 5, 2023, C-807/21, para. 68).

Regarding the subjective element of the offense, it should be noted that the requirement of culpability for the imposition of a fine under Art. 83 GDPR is to be interpreted autonomously under Union law and assessed particularly in light of the case law of the CJEU. Also, regarding the preliminary question concerning culpability, the CJEU stated that the member states were not granted any discretion by the Union legislator for national regulations in this context, as the material requirements are conclusively regulated in Art. 83(1) to (6) GDPR (cf. also CJEU judgment of December 5, 2023, C-683/21, para. 64 et seq.). Thus, § 5 VStG does not apply concerning culpability.

Regarding the question of whether a violation was committed intentionally or negligently and can therefore be punished with a fine, the CJEU clarified in its aforementioned judgment that such culpability is already present if the accused could not have been unaware of the unlawfulness of his behavior, regardless of whether he was aware that he was violating the provisions of the GDPR (cf. CJEU C-807/21, para. 76).

The responsibility and liability of a controller extends to any processing of personal data carried out by or on behalf of the controller. In this context, the controller must not only take appropriate and effective measures but must also be able to demonstrate that its processing activities comply with the GDPR and that the measures it has taken to ensure this compliance are effective (cf. CJEU C-807/21, para. 38, referring to Recital 74).

In the present case, the DSB does not assume any intentional act by the accused. The accused, as the controller according to Art. 4(7) GDPR, consciously decided to transmit the photographs to himself and store them on his mobile phone, but apparently did not sufficiently inquire in advance about the relevant administrative regulations. Merely accessing the DSB's website would have sufficed to find out, for example, that the processing of special categories of personal data is generally prohibited and that the exceptions to the processing prohibition are stipulated in Art. 9(2) GDPR. Furthermore, this can also be derived from the clear wording of Art. 9 GDPR.

Finally, in this context, reference can also be made to the ruling of the Federal Administrative Court of April 8, 2022, GZ: W214 2240128-1, which stated that the complainant there must also have been aware that there are relevant data protection regulations, especially since the GDPR was widely publicized and discussed in the public domain upon its coming into effect in 2018, and a large number of media contributions on this topic were published.

During the course of the investigation, there were no indications that the accused was not culpable for

the violation of the applicable administrative regulations. The accused did not particularly consider the possibility of a justification.

Claimed to counter both the objective and subjective elements of the offense. The accused could not have been unaware of the unlawfulness of his behavior in light of the case law of the CJEU, regardless of whether he was aware that he was violating the provisions of the GDPR (cf. CJEU C-807/21, paras. 76 and 77; CJEU C-683/21, paras. 81 and 82 with further references). Thus, the subjective element of the offense is also fulfilled.

4.

Regarding the determination of the penalty, the following should be noted:

According to Art. 83 para. 1 GDPR, the DSB must ensure that the imposition of fines for violations of the provisions of the GDPR subject to sanctions (Art. 83 para. 4, 5, and 6 GDPR) is effective, proportionate, and deterrent in each individual case. Furthermore, Art. 83 para. 2 GDPR stipulates that when deciding on the imposition of a fine and its amount, certain criteria must be duly considered in each individual case.

The determination of the penalty within a statutory penalty framework is a discretionary decision that must be made according to the criteria established by the legislator (cf. VwGH 05.09.2013, 2013/09/0106). The criteria to be considered by the DSB for penalty assessment are conclusively defined in Art. 83 para. 2 GDPR.

If a fine is imposed on a natural person, according to § 16 para. 1 VStG, a substitute imprisonment must also be set in case of non-collectibility. The substitute imprisonment must not exceed the maximum amount of the custodial sentence threatened for the administrative offense and, if no custodial sentence is threatened and nothing else is specified, two weeks.

By Art. 83 para. 3 GDPR, in deviation from the cumulation principle established in § 22 para. 2 VStG, it is ordered that in cases of identical or interconnected processing operations, through which multiple provisions of the GDPR are violated intentionally or negligently, the total amount of the fine shall not exceed the amount for the most serious violation. Thus, the absorption principle of Art. 83 para. 3 GDPR applies in the context of the GDPR – as applied in the present case.

The penalty framework in the specific case extends up to an amount of EUR 20,000,000 according to Art. 83 para. 5 lit. a GDPR.

The income and asset situation could not be determined due to the lack of cooperation from the accused. Therefore, an estimation in this context had to be made by the authority.

According to the professional lexicon of the Public Employment Service (AMS), the starting salary of a camerawoman or cameraman is estimated between EUR 2,090 and 2,760 (<https://www.beruflexikon.at/pdf/pdf3624-Kameramann-frau/>).

Based on this, it is assumed in the present case that the accused has a monthly gross income of EUR 2,760.

With regard to the present facts, the following aggravating factors were considered in the determination of the penalty:

☐

Nature, duration, and severity of the violation: The unlawful processing, specifically the transmission and storage, has violated the fundamental rights of the affected person (right to confidentiality according to § 1 para. 1 DSG as well as the respect for private and family life and the right to protection of personal data according to Art. 7 and 8 EU Charter of Fundamental Rights) (Art. 83 para. 2 lit. a GDPR).

☐

Categories of personal data affected by the violation: The accused processed special categories of personal data, specifically: data concerning the sexual life of the affected individuals (Art. 83 para. 2 lit. g GDPR).

With regard to the present facts, the following mitigating factors were considered in the determination of the penalty:

☐

There were no relevant prior convictions against the accused at the DSB due to violations of the GDPR

or the DSG (Art. 83 para. 2 lit. e GDPR),

□

The accused deleted the photograph upon request of the affected person (Art. 83 para. 2 lit. c GDPR). The imposition of the penalty in the specific case is necessary not only in a special preventive sense to deter the accused from further criminal acts of the same kind (the accused did not indicate to the DSB that he would refrain from such processing in the future), but also in a general preventive sense to raise awareness among responsible parties regarding the lawful processing of sensitive data.

The specific penalty imposed in the amount of EUR 2,000 appears, therefore, in light of the realized value of the offense, measured against the available penalty framework of Art. 83 para. 5 GDPR (here up to EUR 20,000,000) and taking into account the relevant penalty assessment criteria according to Art. 83 para. 2 GDPR, to be appropriate in terms of the act and culpability and is at the lower end of the available penalty framework due to the first-time violation.

As a result, the specific penalty imposed is thus effective, proportionate, and deterrent in the sense of Art. 83 para. 1 GDPR for the present case.